

Tentative Rulings and Resolution Review Hearings
September 16, 2024
Department 63 (formerly Department 8)

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

Tentative Ruling on Motion for Leave to File Amendment to Complain: Plaintiff Sergio Beltran moves for leave to file an Amended Complaint. There is no separate proof of service filed. There is a proof of service contained within the motion. However, this proof of service indicates that Plaintiff served Defendant M. K. & A., LLC with "Specially Prepared Interrogatories to Defendant M. K. & A., LLC, Set Two." There is therefore not currently a valid proof of service on file. Additionally, there was no Opposition received from Defendant. The motion is **DENIED** without prejudice due to a lack of notice. The Court also notes that Plaintiff did not lodge a copy of the proposed Amended Complaint as required per CRC 3.1324(a)(1). Plaintiff also did not lodge a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order. **No appearance is necessary on today's calendar.**

KENNEDY VS. THOMAS BRENTWOOD, LLC, ET AL.

Case Number: 23CV-0202774

Tentative Ruling on Motions to Compel Discovery Responses: Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel responses to Special and Form Interrogatories, Set One, and Requests for Production, Set One, served by email and US Mail on March 21, 2024. Plaintiff Mary Kennedy has not provided any responses or objections to date. The motions are unopposed.

Merits of Motion: Code of Civil Procedure sections 2030.290 and 2031.300 provide a party may move for an order compelling responses to interrogatories and requests for production, respectively, if no timely response has been received. Sanctions are mandatory absent substantial justification. Unlike a motion to compel further responses, when no responses have been provided, no meet and confer is required. Here, the evidence establishes that Defendant properly propounded the discovery and that no responses have been provided. Defendant is entitled to an order compelling complete responses to the interrogatories and the requests for production without objections.

Sanctions: CCP §§ 2030.290(c) and 2031.300(c) provide for the recovery of monetary sanctions against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or to requests for production, respectively. The Court finds Defendant's hourly rate of \$210 reasonable and finds the three hours spent per motion reasonable. Defendant requests three additional hours in anticipation of reviewing and

responding to oppositions, and of preparing for and appearing at the hearing. No oppositions have been filed, so the Court will reduce the amount to one additional hour for preparing for and appearing at the hearing. The total hours reasonably incurred on these motions is therefore 7 hours. Costs incurred for filing each of the two discovery motions (\$120.00 total) will also be imposed.

Defendant's Motion to Compel Responses to Form Interrogatories, Set One and Special Interrogatories, Set One is **GRANTED**. Plaintiffs' Motion to Compel Responses to Requests for Production, Set One is **GRANTED**. Sanctions in the amount of \$1,590.00 are imposed against Plaintiff pursuant to CCP §§ 2030.290(c) and 2031.300(c). Proposed orders have been lodged and will be modified and executed.

Proposed Tentative Ruling on Motion to Compel Response to Request for Statement of Damages: Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel a response to Defendant's Request for Statement of Damages, served by email on June 14, 2024. Plaintiff Mary Kennedy has not provided a responsive statement to date. The motion is unopposed.

Merits of Motion: Code of Civil Procedure section 425.11(b) provides that in a personal injury action, the defendant may at any time request a statement of damages, which plaintiff shall respond to within 15 days. In the event a response is not served, the defendant, on notice to plaintiff, may petition the court to order plaintiff to serve a responsive statement. Here, the evidence establishes that Defendant requested a statement of damages on June 14, 2024. To date, no responsive statement has been provided. Defendant filed the instant properly noticed motion, and no opposition has been filed. Defendant is entitled to the relief requested.

Sanctions: Defendant requests sanctions but does not provide authority for the imposition of sanctions under CCP § 425.11. Unlike the Civil Discovery Act, which provides for fee shifting in discovery disputes pursuant to CCP §§ 2030.290(c) and 2031.300(c), and other sections, CCP § 425.11 does not provide for sanctions. The Court therefore declines to impose sanctions on this motion.

Defendant's Motion to Compel Response to Request for Statement of Damages is **GRANTED**. No sanctions are imposed. A proposed order has been lodged and will be modified and executed.

IN RE: KLOTZER

Case Number: 24CV-0205186

Tentative Ruling on Petition for Change of Name: Petitioner Gavin Nicholas Doty aka Gavin Nicholas Klotzer seeks to change his name to Gavin Nicholas Klotzer. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

MATLOCK VS. WOLF SCOOTERS, LLC, ET AL.

Case Number: CVPO22-0199209

Tentative Ruling on Motion to Be Relieved as Counsel: Jillian E. Stanley of Quarles & Brady LLP moves to be relieved as counsel for Defendant Bird Rides, Inc. The moving papers do not address the fact that the matter is currently stayed due to the Notice of Stay of the Proceedings which was filed on March 15, 2024. While the Court continues to monitor the case pending the bankruptcy, the Court has not been presented with clear legal authority that would allow the Court to hear such a motion while the matter is stayed due to bankruptcy.

Accordingly, the Court **DECLINES** to issue a ruling on this motion and the matter is dropped from calendar. Counsel may re-notice the motion when and if the stay is lifted. **No appearance is necessary on today's Law & Motion calendar. The Court will call the matter at 9:00 a.m. as it is on calendar for review regarding status of the bankruptcy case.**

REDDING BUSINESS PARK, LLC VS. AMAZING FINDS, LLC, ET AL.

Case Number: CVCV19-0192492

Tentative Ruling on Motion for Summary Judgment and/or Summary Adjudication: Plaintiff Redding Business Park, LLC moves for summary judgment and summary adjudication. As noted below, the motion is opposed by Defendant Julie Umali only.

Procedural Issues. There are two named defendants in this matter, Defendant Amazing Finds, LLC (Amazing Finds) and Defendant Julie Umali. Counsel has been relieved as to both defendants which leaves both unrepresented. By not hiring counsel, Julie Umali has elected to proceed as a self-represented litigant. The Court has repeatedly cautioned Julie Umali that she cannot appear on behalf of or represent Amazing Finds as it is a corporation and representing a corporation would constitute the unauthorized practice of law. See *CLD Construction, Inc. v. City of San Ramon* (2024) 120 Cal. App. 4th 1141. Julie Umali, on behalf of Amazing Finds and herself, filed an Opposition and supporting documents on July 15, 2024. Julie Umali, on behalf of herself only, filed an Opposition on August 30, 2024. The Court is only considering the Opposition filed by Julie Umali on August 30, 2024, as it appears that the August 30, 2024, Opposition is meant to replace the July 15, 2024, Opposition and because the July 15, 2024, Opposition appears to have been filed in violation of Business & Professions Code § 6125. The Court strikes the following documents filed by Julie Umali on behalf of Amazing Finds and Julie Umali on July 15, 2024:

- Defendant Julie Umali and Amazing Finds, LLC's Compendium of Evidence
- Declaration of Julie Umali
- Defendant Julie Umali and Amazing Finds, LLC's Separate Statement
- Defendant Julie Umali and Amazing Finds, LLC's Opposition

In the Reply filed on July 17, 2024, Plaintiff argues that the Opposition filed on July 15, 2024, was untimely. This issue has been mooted by the continuance of the hearing and because the July 15, 2024, Opposition was stricken. The August 30, 2024, Opposition was timely filed for a September 16, 2024, hearing.

The Court notes that hearing on this motion was continued from July 22, 2024, to today's date at the request of Plaintiff. The basis for this request is that Plaintiff had not filed any evidence with the motion which resulted in a Tentative Ruling denying the motion. Plaintiff asserted at the hearing that the evidence for the motion had been provided to the fax filing agency. Over Julie Umali's objection, the Court continued the hearing for Plaintiff to provide such evidence. The Court did not make a ruling whether the evidence would be accepted. The Court has reviewed the Declaration of Lisa Brown filed on August 9, 2024, and finds that the error was on the part of the fax-filing agency and is not attributable to Plaintiff. The Court will consider Plaintiff's Exhibit List and Exhibits for Motion for Summary Judgment and Summary Adjudication filed on August 9, 2024.

Legal Standard for Summary Judgment. CCP § 437c(c) states a motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law. "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(1). "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material, fact." *Johnson v. Superior Court* (2006) 143 Cal. App. 4th 297, 304.

Summary Judgment. Plaintiff seeks summary judgment on the Complaint, First Amended Complaint, Second Amended Complaint, and Third Amended Complaint. As the Third Amended Complaint is the operative

pleading, having replaced all complaints and amended complaints filed prior, the Court will consider summary judgment as to the Third Amended Complaint only. The Third Amended Complaint was filed on August 5, 2019. While Plaintiff argues both a breach of contract cause of action and a common counts cause of action, the only cause of action alleged in the Third Amended Complaint is for breach of contract. Under Item 8, only the Breach of Contract box was checked. The box for Common Counts was left blank. There is no attachment to address common counts. Therefore, Plaintiff only has one pending cause of action for breach of contract. Additionally, while Plaintiff listed several ways that Plaintiff alleges Amazing Finds breached the lease agreement, the only breach alleged in the Third Amended Complaint is “failing to pay lease payments.”

The evidence provided by Plaintiff shows that Plaintiff and Amazing Finds entered into commercial lease on June 8, 2016. Plaintiff’s Ex. A (signed copy) and Ex. B (legible unsigned copy). Julie Umali signed the lease on behalf of Amazing Finds. Plaintiff’s Ex. A. The lease is for a term of June 1, 2016, to an illegible date in May of 2017 with a monthly rental amount of \$3,000. The use listed in the lease is for “Furniture Storage and 10% retail and/or any allowable zoning use.” Item 16 addresses Amazing Finds’ use of signs and includes that Plaintiff’s express written consent for a sign will not unreasonably be withheld. Item 32 includes an option to renew the lease for an additional 12 months at the rate of \$4,000 per month. Item 38 includes that the “Building is being leased in an ‘AS-IS’ condition.” The Addendum includes a second option to renew for months 24-48 at \$6,000 per month. The landlord’s responsibility for tenant improvements is capped at \$7,500 initially with an additional \$7,500 upon the exercise of the second option for months 25-48.

On January 41, 2017, Rene Umali emailed Mikel Rastegar indicating that he was exercising his “option to renew the lease as per section 32 of the lease.” Plaintiff’s Ex. N. On February 20, 2018, Rene Umali emailed Mikel Rastegar and wrote, “Please take this email as my notice to renew my lease for a 3rd year while I either look for another location to move or build.” Plaintiff’s Ex. O. That was withdrawn via an email sent by Rene Umali on May 20, 2018. Plaintiff’s Ex. P. Per Item 29 of the lease, any holding over after expiration of the lease, with consent of the lessor, will be a month-to-month tenancy at a monthly rate equal to rent for the immediately preceding month plus \$1,000. Mikel Rastegar declares that Amazing Finds did not vacate the premises until approximately November 10, 2018. Rastegar Decl. ¶ 76. Text messages between Amazing Finds and Mikel Rastegar reveal that the number saved as “Redding Tennat Amazing Finds Cell” wrote, “We are done. Key is under 2-gallon bucket on the loading dock. This is your formal notice” on October 26, 2018. Rastegar Decl. ¶ 76; Plaintiff’s Ex. CC. Mikel Rastegar asked about the key to the gate which Amazing Finds still had and Mikel Rastegar text back, “You are deemed to still be in possession.” Plaintiff’s Ex. CC.

Prior to signing the lease, the parties exchanged emails regarding the potential use of the property. Plaintiff’s Ex. C. On April 28, 2016, Rene Umali emailed Mikel Rastegar stating that he had spoken with the Redding Planning Department and they would not allow retail activity in a General Industrial Zone. Plaintiff’s Ex. C. On April 30, 2016, Rene Umali emailed Mikel Rastegar and stated that he had spoken with one of his investors about using the 20,000 sq. ft. building without needing a variance. Plaintiff’s Ex. C. On May 20, 2016, Rene Umali emailed again stating that he and Julie decided to lease the “warehouse to temporarily store and process” items. Plaintiff’s Ex. C. On August 8, 2016, Rene Umali emailed Mike Rastegar about Amazing Finds wanting to use the location to be a U-Haul dealer and Mike Rastegar responded on the same date that this was rejected. Plaintiff’s Ex. G. Issues arose between the parties regarding the parking lot and drainage two months into the lease. Rastegar Decl.; Plaintiff’s Ex. H. In August of 2016, the parties were also in disagreement about who was responsible for maintenance of the parking lot and loading dock area. Plaintiff’s Ex. J. The parties were also in disagreement regarding the Tenant Improvements as early as September 2016, with Rene Umali emailing on July 21, 2016, that he was considering legal action. Plaintiff’s Ex. K. Some Tenant Improvements were completed but the parties were in disagreement regarding payment. Plaintiff’s Ex. J and L. There was a dispute in September of 2016 about whether the gate was secure and also a dispute regarding storage of items outside of the building. Plaintiff Ex. L.

A Notice of Violation was issued by the City of Redding on September 12, 2017, for lack of building permits, a banner, outdoor storage, and the driveway/parking area. Plaintiff's Ex. Q. In late 2017 and early 2018, the parties were in a dispute regarding the violations alleged in the Notice of Violation. Plaintiff's Ex. R. An Administrative Citation was issued on February 2, 2018, to Rene Umali for debris outside and a deteriorated parking paved area. Plaintiff's Ex. S. The parking lot is an issue that Rene Umali and Mikel Rastegar appear to have been in disagreement about from 2016 until after the citation was issued. Plaintiff's Ex. T. Another citation was issued on April 6, 2018. Plaintiff's Ex. U. In May of 2018, Rene Umali requested that Mikel Rastegar confirm to the City of Redding that Mikel Rastegar approved the use of 10% of the entire complex for showroom space. Plaintiff's Ex. P.

Plaintiff seeks rent partial rent from June of 2018, and full holdover rent for July-November 2018 as well as late fees, a locksmith, door repair, employee time, and advertisements.

The elements of breach of contract are: 1) a contract; 2) plaintiff's performance of the contract or excuse for nonperformance; 3) defendant's breach; and 4) resulting damage to the plaintiff. *Richman v. Hartley* (2014) 224 Cal. App. 4th 182, 1186.

Amazing Finds. Amazing Finds is the lessee in this matter. There appears to be a valid contract as the lease was written and is in the standard form for a commercial lease. No evidence has been provided regarding who Rene Umali is or his authority to exercise the lease options. Therefore, Plaintiff has not established that the lease options were properly exercised. However, Plaintiff has established that Amazing Finds occupied the premises until at least October 28, 2018, which would make Amazing Finds a holdover tenant regardless of the lease options being exercised.

Regarding the second element, Plaintiff has not met their burden of showing that Plaintiff performed under the contract or was excused from performance. There is a triable issue of material fact as to the date that Amazing Finds vacated the premises. There is a triable issue of material fact as to whether Plaintiff performed under the contract or was excused from nonperformance. Plaintiff provided ample evidence that there were disputes early on and throughout the duration of the lease regarding who was responsible for what. The issue of who was to maintain and repair the parking lot is a triable issue of material fact. The issue of whether Plaintiff complied with Item 16 which requires that Plaintiff not unreasonably withhold written permission for a sign is a triable issue of material fact. Whether Plaintiff complied with the agreement regarding Tenant Improvements is a triable issue of material fact.

Julie Umali. On the Third Amended Complaint, Item 9 is checked and it is alleged that, "Defendant, Julie Umali, is the 'alter ego' of Amazing Finds, LLC and failed to comport with corporate formalities." The issue of alter ego is not addressed in the moving papers. No facts were set forth regarding an alleged alter ego and this issue is not listed in the Notice of Motion and Motion or Memorandum of Points and Authorities. Therefore, the Court has not been provided with sufficient evidence or argument to find that Amazing Finds is an alter ego for Julie Umali.

Summary Adjudication of Cross-Complaint. Defendants Amazing Finds, LLC and Julie Umali filed a Cross-Complaint on January 12, 2022. The Cross-Complaint alleges nine causes of action. CRC 3.1350(c) requires that a memorandum in support of Plaintiff's motion for summary adjudication be filed. While Plaintiff filed a Memorandum of Points and Authorities, it does not address the merits of any of the nine causes of action alleged in the Cross-Complaint. No legal authority or analysis has been provided.

The motion is **DENIED** in its entirety. Plaintiff provided a proposed order that will be modified to reflect the Court's ruling. The Court confirms the trial date of October 29, 2024.

SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.

Case Number: 23CV-0202926

Tentative Ruling on Motion to Vacate and Set Aside Default and Motion to Vacate and Set Aside Default

Judgment: Defendants Marikit Del Rosario Sabet, Rosalinda Gilbert-Ahrens and Steve Ahrens (hereinafter “Defendants”) move pursuant to CCP § 473(b) to set aside their default based on counsel’s mistake, inadvertence and neglect. Defendants move separately pursuant to CCP § 473(b) to set aside their default *judgment* based on counsel’s mistake, inadvertence and neglect. The issues of both motions are nearly identical and will be addressed together.

Merits of Motion: Defendants seek to have their default and default judgment vacated pursuant to CCP § 473(b) based on defense counsel’s mistake, inadvertence or neglect. CCP § 473 states in pertinent part:

“the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

Defense counsel, Jeffrey Swanson, has submitted a declaration stating that the “default entered against Defendants...was entered because of my mistake, inadvertence and neglect.” He also states that he was Defendants counsel prior to March 4, 2024 (the date the default was entered), that he had received a copy of the complaint in 2023 and was late in filing the answer. Finally, he provides that the mistake was his alone and was not the mistake of his client and was not an intentional strategic decision. Based on the foregoing, the Court finds that defense counsel has sufficiently establish his mistake was the cause of the default and default judgment. A stay is now in effect as to Defendants Rosalinda Gilbert-Ahrens and Steve Ahrens and therefore relief can only be granted as to Defendant Marikit Del Rosario Sabet.

The motions are **GRANTED** as to Defendant Marikit Del Rosario Sabet only. This proceeding is stayed as to Defendants Rosalinda Gilbert-Ahrens and Steve Ahrens and therefore the matter is dropped from calendar and may be placed back on calendar if the stay is lifted. Proposed orders were lodged with the Court and will be modified to reflect the Court’s final ruling.

Tentative Ruling on Motion to Set Aside and Vacate Default: Defendants David Howland and Lori Howland (hereinafter “Defendants”) move pursuant to CCP § 473(b) to set aside their default based on counsel’s mistake, inadvertence and neglect.

Merits of Motion: Defendants seek to have their default vacated pursuant to CCP § 473(b) based on defense counsel’s mistake, inadvertence or neglect. CCP § 473 states in pertinent part:

“the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.”

Defense counsel, Scott Johannessen, has submitted a declaration stating that he was Defendants counsel prior to March 4, 2024 (the date the default was entered) and was late in filing the answer because he was preparing a brief for the Ninth Circuit Court of Appeals. Defense counsel even informed Plaintiff that an answer would be filed the week after. The answer was in fact filed the week after, but Plaintiff had already sought and obtain Defendants' default. The Court finds that defense counsel has sufficiently establish his mistake was the cause of the default. The Court will set aside the default and the default judgment upon which it is based.

The motion is **GRANTED**. No proposed order was lodged with the Court. Defendants shall prepare the order.

9:00 a.m. – Review Hearings

AUGUST VS. KAPANOSKE, ET AL.

Case Number: 23CV-0203195

This matter is on calendar for trial setting. Plaintiff was to five notice and file proper proof of service. Proof of service has not been filed. Should all parties appear despite the lack of service, the Court intends to set the mater for trial. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 4, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

This matter is on calendar for review regarding status of the case. The Court notes that Defendant M. K. & A. has new counsel as of May 22, 2024. The Court notes that the litigation is at issue and the matter is ready to be set for trial. However, the matter was on calendar this morning for Plaintiff's Motion for Leave to File Amended Complaint that was denied for a lack of service on Defendant. **An appearance is necessary on today's calendar to discuss whether this matter is ready to be set for trial, and if appropriate, to set a trial date.**

BROWN VS. ZINCO HOLDING, LLC.ET. AL.

Case Number: CVCV21-0198122

This matter is on calendar to reset a court trial that has a 2-3 day time estimate. This matter has been deemed exempt from plan designation, however, the Court intends to set the matter for trial before the end of 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for court trial. **An appearance is necessary on today's calendar.**

CITY OF ANDERSON VS. KRUMINS, ET AL.

Case Number: 23CV-0203032

This matter is on calendar for review regarding status of property/removal of Respondents' remaining items. The Court has reviewed the Eleventh Report of the Receiver which indicates the property is ready to be listed for sale. **An appearance is necessary on today's calendar.**

HICKS, ET AL. VS. PARTIN, ET AL.

Case Number: 22CV-0201086

This matter is on calendar for status of arbitration. The Court has reviewed the Joint Status Statement filed on September 9, 2024. The matter is continued to **Monday, November 18, 2024 at 9:00 a.m. in Department 63** for review regarding status of arbitration. **No appearance is necessary on today's calendar.**

LIEBERMAN VS. THE CITY OF REDDING, ET AL.

Case Number: CVPM21-0197061

This matter is on calendar for review regarding status of counsel. The Court notes that Defendant served Plaintiff with notice of today's hearing on September 3, 2024. The Court notes that this matter is set to commence trial on October 1, 2024. **An appearance is necessary on today's calendar.**

MATLOCK VS. WOLF SCOOTERS, LLC, ET AL.

Case Number: CVPO22-0199209

This matter is on calendar for review regarding status of the bankruptcy stay. No status report was filed. **An appearance is necessary on today's calendar.**

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

Case Number: 22CV-0201036

This matter is on calendar for review regarding status of discovery and to select a date for the class certification motion. The parties filed a Joint Report Re Case Management asking for a sixty-day continuance to continue to meet and confer regarding discovery. This matter is continued to **Tuesday, November 12, 2024 at 9:00 a.m. in Department 63** for review regarding discovery and to set a hearing date for the class certification motion. **No appearance is necessary on today's calendar.**

SPRING OAKS CAPITAL SPV, LLC VS. NICOLLS

Case Number: 23CVG-00437

This matter is on calendar for review regarding status of the case. On July 1, 2024, the parties informed the Court that a settlement had been reached. The trial date was vacated and the matter was set for review on today's date. The Court notes that Plaintiff has filed a trial brief noticed for a trial today at 10:00 a.m. That trial was vacated on July 1, 2024. **An appearance is necessary on today's calendar.**

TORRES CARDENAS VS. PICK-N-PULL AUTO DISMANTLERS, LLC, ET AL.

Case Number: 23CV-0201565

This matter is on calendar for review regarding status of service and trial setting. At the last hearing on July 15, 2024, Plaintiff asserted that all parties had been served and have answered. The Court accepted this representation, however, a review of the file reveals that Pick-N-Pull Auto Dismantlers, LLC and Schnitzer Steel Industries, Inc. filed an Answer on December 21, 2023. Pick-N-Pull Auto Dismantlers, Stockton, LLC also filed an Answer on December 21, 2023, however, Pick-N-Pull Auto Dismantlers, Stockton, LLC was dismissed from the case on February 1, 2024. There is no Proof of Service of Summons or Answer on file for Pick-N-Pull Auto Dismantlers Pasadena, Inc. The Court expects Plaintiff's counsel to be aware of which defendants were named in the suit and the status of service for each. Absent good cause for not serving Defendant Pick-N-Pull Auto Dismantlers Pasadena, LLC, the Court intends to issue an Order to Show Cause Re Monetary Sanctions to Plaintiff and counsel for failure to timely serve Pick-N-Pull Auto Dismantlers Pasadena, LLC and for providing inaccurate information to the Court. **An appearance is necessary on today's calendar.**

WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.

Case Number: 22CV-0201099

This matter is on calendar for review regarding status of arbitration. The parties filed a Joint Status Report informing the Court that the matter is still proceeding in arbitration. The matter is continued to **Monday, March 17, 2025, at 9:00 a.m. in Department 63** for status of arbitration. **No appearance is necessary on today's calendar.**